

no heir *quatanus* this estate; for it was not allowed to *descend*, but was aliened or devised away from the person who would have been heir; [and the same principle equally applies to a case falling under the recent Act, where if the estate be conveyed away by the trustee in his lifetime, so as not to vest in his personal representative, such representative cannot execute the power.]

5. **Case of real and personal estate coupled together.** — In *Cole v. Wade* (b), a testator gave the residue of his real and personal estate to Ruddle and Wade (whom he appointed his executors), their executors, administrators, and assigns, and directed *his said trustees and executors*, after making certain payments thereout, to convey and dispose of the said residue of his real and personal estate unto and amongst such of his relations and kindred in such proportions, manner and form, as *his said executors* should think proper, his intention being that everything relating to that disposition should be entirely at the discretion of the said *trustees and executors, and the heirs, executors and administrators of the survivor of them* (c). Wade, the survivor, devised and bequeathed the real and personal estate of the testator to William and Edward Bray, their heirs, executors, administrators and assigns, upon the trusts of the will, and named them his executors for that specific purpose only, appointing his wife and another person executors as to his own estates. The question was discussed, whether William and Edward Bray could exercise the power of distribution among the relations. Sir W. Grant said, “The original trustees and executors were the same persons; all the real and personal estate was vested equally in them; but the heirs and executors of the surviving trustee might be different persons; yet all the directions about the distribution of the residue proceed upon the supposition that the same persons are to select the objects and settle the proportions in which they are to take; but if the real estate is to go to one, * and the personal estate to another, [*610] the testator has left it entirely uncertain how the power is to be executed. Whether the Messrs. Bray can in

(b) 16 Ves. 27.

form of expression elsewhere in the

(c) The testator used this last will.